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Debbie Conway
Clark County Recorder

APN No.: 137-14-501-003, 137-13-101-003
Escrow No.: 06-04-0115-LAP

WHEN RECORDED RETURN TO:

THE HOWARD HUGHES CORPORATION
10000 West Charleston Boulevard, Suite 200
Las Vegas, Nevada 89135
Attention: Angie Fitzgerald

(Space above for Recorder's use only)

SUPPLEMENTAL DECLARATION OF ANNEXATION AND OF COVENANTS,
CONDITIONS, RESTRICTIONS AND
RESERVATION OF EASEMENTS FOR

VILLAGE 26
(Parcel 1)

SUPPLEMENTAL DECLARATION OF ANNEXATION AND OF COVENANTS, CONDITIONS, RESTRICTIONS AND RESERVATION OF EASEMENTS

THIS SUPPLEMENTAL DECLARATION (the "Supplemental Declaration") is made on this 13th day of December, 2007, by THE HOWARD HUGHES CORPORATION, a Delaware corporation ("Declarant"), with the consent of PN II, INC., a Nevada corporation, dba PULTE HOMES OF NEVADA ("Pulte").

RECITALS

A. Pulte is the owner of certain property in the City of Las Vegas (the "City"), State of Nevada, which is more particularly described on Attachment "A" attached hereto which real property shall hereinafter be referred to as the "Development."

B. Declarant, as the former owner of the Development and the current owner of the adjacent properties, did on January 23, 2001, cause to be recorded in the office of the County Recorder of Clark County, Nevada, in Book 20010123 as Instrument No. 01409, a Declaration of Covenants, Conditions, Restrictions, and Reservation of Easements for Summerlin West Community Association (the "Master Declaration") pertaining to certain specifically described property located within the City of Las Vegas, Nevada, as designated therein and referred to herein as the "Community", in order to establish a balanced community accommodating a mix of residential and other land uses, including open space, and to develop and convey all of the property subject to the Master Declaration pursuant to a general plan for the maintenance, care, use and management of the property.

C. Declarant has formed the Summerlin West Community Association (the "Master Association"), a non-profit corporation, to which is delegated and assigned the powers of owning, maintaining, and administering certain property within the Community, of which the Development is a portion.

D. The Development is a part of the Annexable Property described in Exhibit "B" of the Master Declaration, and is subject to annexation by Declarant to the terms of the Master Declaration. Consistent with Declarant's intent to establish a balanced community in the Development, and to develop and convey all of the Units pursuant to a general plan for the maintenance, care, use and management of the Development, Declarant has deemed it desirable to annex the Development to the terms of the Master Declaration and also to establish certain protective covenants, conditions, restrictions, reservations, easements, equitable servitudes, liens and charges, all supplemental and in addition to those contained in the Master Declaration, upon the properties within the Development, all for the purpose of enhancing and protecting the value, desirability and attractiveness of the Development and enhancing the quality of life therein. All property within the Development shall be held and conveyed subject to such covenants, conditions, restrictions, reservations, easements, equitable servitudes, liens and charges.

E. The Master Declaration provides that Declarant may annex the Development and that the Development shall thereby be subject to the provisions of the Master Declaration.

NOW, THEREFORE in consideration of the foregoing premises, the provisions hereinafter contained, and other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, Declarant hereby declares that all property in the Development shall be held, sold, conveyed, encumbered, hypothecated, leased, used, occupied and improved subject to the following

protective covenants, conditions, restrictions, reservations, easements, equitable servitudes, liens and charges, all of which are for the purpose of uniformly enhancing and protecting the value, attractiveness and desirability of the Development, in furtherance of a general plan for the protection, maintenance, improvement, sale and lease of the Development, or any portion thereof. The protective covenants, conditions, restrictions, reservations, easements, and equitable servitudes set forth herein shall run with the Development and shall be binding upon all Persons having any right, title or interest in the Development, or any part thereof, their heirs, successive Owners and assigns; shall inure to the benefit of every portion of the Development and any interest therein; and shall inure to the benefit of and be binding upon Declarant, its successive owners or assigns, and each Owner and his or her respective successors-in-interest.

Additionally, Declarant hereby declares that the Development is and shall be held, conveyed, hypothecated or encumbered, leased, rented, used, occupied, and improved subject to the Master Declaration and to the following provisions, covenants, conditions, restrictions, reservations and limitations (collectively, the "CC&Rs"), all of which are declared and agreed upon for the purpose of enhancing and protecting the value, desirability, and attractiveness of the Development and every part and portion thereof, as follows:

ARTICLE 1. ANNEXATION.

1.1 Establishment of Restrictions and Enforcement. The Development is hereby annexed to the terms of the Master Declaration. All of the CC&Rs in the Master Declaration and this Supplemental Declaration are hereby established and imposed upon the Development for the benefit of the Development and each and every portion thereof and each and every Owner of an interest of any kind or character therein. Each and all of the CC&Rs shall run with the land in the Development and shall be binding on all parties (whether owners, occupants or otherwise) having or acquiring a right, title or interest in the Development or any part thereof. Every person or entity who now or hereafter owns or acquires any right, title or interest in or to any portion of the Development is and shall be conclusively deemed to have consented and agreed to each and all of the CC&Rs, whether or not any reference to the CC&Rs or this Supplemental Declaration is contained in the instrument by which such person acquired an interest in the Development. Each and all of said CC&Rs shall be enforceable by the Declarant (and any Owner and the Master Association) as provided in the Master Declaration.

1.2 Construction of Instruments. The provisions of the Master Declaration and this Supplemental Declaration shall be liberally construed to effectuate the purposes expressed herein. To the extent that any provision of this Supplemental Declaration conflicts with the provisions of the Master Declaration, the latter shall control. Any initially capitalized term used herein not otherwise defined herein shall have the meaning assigned thereto in the Master Declaration.

1.3 Assessment Unit. The Development is not currently subdivided into Units. Pursuant to Section 2.44 of the Master Declaration, a Builder shall be charged with one assessment unit for each Unit permitted on a parcel up to the maximum number of permissible Units as set forth in any Recorded agreement affecting such parcel until such time as the parcel has been subdivided. Accordingly, the maximum number of permissible Units in the Development shall be seven hundred (700), until further adjusted as provided in Section 2.44.

ARTICLE 2. USE RESTRICTIONS.

Subject to the exemptions of the Declarant and Builders as set forth in the Master Declaration, all real property within the Development shall be held, used and enjoyed subject to the limitations, restrictions and other provisions set forth in this Supplemental Declaration. The strict application of the limitations and restrictions in this Article 2 may be modified or waived in whole or in part by the Design Review Committee or the Board of Directors in specific circumstances where such strict application would be unduly harsh. Any such waiver or modification will not be valid, however, unless it is in writing

executed by the Board of Directors or by the Design Review Committee. Neither the Master Association, its Board of Directors or Design Review Committee, nor their respective members, officers or employees shall be liable to any Owner or other Person as a result of the failure to enforce any use restriction or for granting or withholding a waiver or modification of a use restriction.

2.1 Antennas and Satellite Dishes. Standard TV antennas and satellite dishes 1 meter in diameter or less shall be permitted in the Development; however, such over-the-air reception devices shall comply with all Design Guidelines or other applicable rules or use restrictions adopted by the Design Review Committee, the Board of Directors, or the Master Association, pertaining to the means, method, and location of TV antenna and satellite dish installation. Declarant and/or the Association shall have the right, without obligation, to erect an aerial, satellite dish, or other apparatus for a master antenna, cable, or other communication system for the benefit of all or a portion of the Development, should any master system or systems be utilized by the Master Association and require such exterior apparatus.

2.2 Insurance Rates. Without the approval of the Board of Directors, nothing shall be done or kept in the Development which is in violation of any law, would result in the increase of insurance rates for any Association Property or would result in the cancellation of insurance for any Association Property. The Design Review Committee shall have no power to waive or modify this restriction.

2.3 Signs. No sign, poster, billboard, advertising device or display of any kind shall be erected, displayed or maintained anywhere on the Development without the approval of the Design Review Committee, except that the Design Review Committee need not approve the following: (a) any sign (regardless of size or configuration) used by Declarant in connection with the Development, construction, marketing and/or sale of Units, and (b) a sign advertising for sale or lease a privately owned Unit; provided, however, that such sign conforms to the specifications promulgated (from time to time) by the Design Review Committee, relating to dimensions, design, number, style and location of display.

2.4 Nuisances. No rubbish, refuse or scrap lumber or metal; and no grass, shrub or tree clippings; and no plant waste, compost, bulk materials or debris of any kind shall be kept, stored or allowed to accumulate on any privately owned Unit unless stored within an enclosed structure or container which has been approved by the Design Review Committee, or unless such matter is screened from view in a manner approved by the Design Review Committee. A refuse container, the use of which has been approved by the Design Review Committee, containing such materials, may be placed outside at times reasonably necessary to permit garbage or trash pickup. Reasonably necessary time shall not extend more than twelve (12) hours before scheduled pickup. No sound or odor shall be emitted from any area of the Development, which is noxious or unreasonably offensive to any Person. Without limiting the generality of any of the foregoing provisions, no horns, whistles, bells or other sound devices (other than devices used exclusively for safety, security or fire protection purposes), noisy or smokey vehicles, unlicensed off-road motor vehicles or other items which may unreasonably disturb other Owners or their tenants shall be located, used or placed on any property within the Development without the prior written approval of the Design Review Committee. Prior written approval of the Design Review Committee is required for the operation of motorcycles, dirt bikes or other mechanized vehicles on unpaved portions of the Association Property.

2.5 Exterior Maintenance and Repair. No property anywhere within the Development shall be permitted to fall into disrepair, and all property including any Improvement thereon or landscaping thereon shall at all times be kept in a clean, safe, and attractive condition. If any Owner shall permit any Unit thereon, which it is the responsibility of such Owner to maintain, to fall into disrepair so as to create a dangerous, unsafe, unsightly or unattractive condition, the Master Association, after Notice and Hearing to such Owner, shall have the right, but in no way the obligation, to correct such condition, and to enter upon such Owner's Unit for the purpose of doing so. Such Owner shall promptly reimburse the Master Association for the cost thereof. Such cost shall be cause for a Specific Assessment enforceable in the manner as set forth in the Master Declaration and the Owner of the offending Unit shall be personally liable for all such corrective acts, plus all costs incurred in collecting the amounts due. Each Owner shall

pay all amounts due for such work within ten (10) days after receipt of written demand therefor, or action shall be taken against the Owner in the manner set forth in the Master Declaration. The Master Association shall have no liability, whatsoever, for any damage done to an Owner's Unit as a result of its entrance and repair, provided, however, that the Master Association was acting in good faith without negligence.

2.6 Drainage. There shall be no interference with the established drainage pattern over any Unit, so as to affect any other Unit, unless an adequate alternative provision is made for proper drainage and is first approved in writing by the Design Review Committee. For the purposes hereof, the "established drainage pattern" means the drainage pattern which exists at the time the overall grading of any Unit is completed by Declarant and shall include any grading changes shown on plans approved by the Design Review Committee.

2.7 Water and Sewer Systems. No individual water supply system, cesspool, septic tank or other sewage disposal system shall be permitted on any Unit unless such system is designed, located, constructed and equipped in accordance with the requirements, standards, and recommendations of any applicable water district and any applicable governmental health authority having jurisdiction, and has the prior written approval of the Design Review Committee. Automatic irrigation systems shall be installed and maintained to conserve water and insure proper watering of plant materials. Atmospheric breakers shall not be allowed. All irrigated turf grass shall utilize remote electric control valves installed in valve boxes. No manual valves shall be permitted or allowed. In no case shall heads irrigating turf grass throw directly onto a foundation structure, roadway, attached sidewalk, walkway, Party Wall or wall abutting a Common Element.

2.8 No Hazardous Activities. No activities shall be conducted nor shall any Improvements be constructed anywhere in the Development which are or might be unsafe or hazardous to any Person or Unit in the Development. Without limiting the generality of the foregoing, no firearms shall be discharged upon any property within the Development and no open fire shall be lighted or permitted on any Units within the Development except in a contained barbecue unit while attended and in use for cooking purposes or in an interior or exterior fireplace designed to prevent the disbursal of burning embers.

2.9 Unsightly Articles. No unsightly articles, facilities, equipment, objects or conditions (including but not limited to clotheslines, and garden and maintenance equipment) shall be permitted to remain on any Unit in the Development so as to be visible from any public or private street or from any other Unit in the Development.

2.10 Temporary Structures. Unless approved in writing by the Design Review Committee, no tent, shed, shack or other temporary or portable building Improvement or structure shall be placed upon any portion of the Development.

2.11 Mining and Drilling. No area of the Development shall be used for the purpose of mining, quarrying, drilling, boring or exploring for or removing water, oil, gas or other hydrocarbons, minerals, rocks, stones, gravel or earth, nor shall oil wells, tanks, tunnels or mineral excavations or shafts be permitted upon the surface of any portion of the Development or within five hundred fifty (550) feet below the surface of the Development.

2.12 Improvements and Alterations. There shall be no excavation, construction, alteration or erection of any Improvement (including any projection) which in any way alters the exterior appearance of any Unit, existing Improvement or any public or private street or any portion of a Unit without the prior approval of the Design Review Committee. There shall be no violation of the set-back or side yard requirements of the local governmental authority, notwithstanding any approval of the Design Review Committee. This Section shall not be deemed to prohibit minor repairs or rebuilding which are for the purpose of maintaining or restoring a Unit at or to its existing condition.

2.13 Residential Use. All Units, other than the Common Area, shall be improved and used solely for residential use; provided, however, that this provision shall not preclude any Owner from renting or leasing all of his Unit or any Apartment Units thereon by means of a written lease or rental agreement subject to the Master Declaration. No such lease or rental of a Unit shall be for a term of less than thirty (30) days. No Unit shall ever be used or caused to be used or allowed or authorized to be used in any way, directly or indirectly, for any business, commercial, manufacturing, mercantile, storage, vending, or other such non-residential purpose; except Declarant and Builders, their successors and assigns, may use any portion of the Development for a model home site and display and sales office during the construction and sales period, in accordance with the Master Declaration. The provisions of this Section shall not preclude professional administrative occupations without external evidence thereof, for so long as such occupations are conducted in conformance with all applicable governmental ordinances, and are merely incidental to the use of the Unit as a Residence. Without limiting the generality of the foregoing, no Unit shall be used or caused to be used or allowed, suffered or authorized to be used in any way, directly or indirectly, as a "retreat" or temporary lodging for employees, invitees, guests or patrons of a business, whether or not such business is owned or otherwise controlled by the Owner of the Unit. The use of a Unit by social guests of the Unit's Owner (i.e., persons who are not members of the Owner's Family) during times the Owner is not present in the Unit shall be limited to such reasonable periods of time as may be determined by the Board, from time to time, in its discretion.

2.14 Improvements.

(a) No Owner's Unit shall be improved except with a Residence or Residences designed to accommodate no more than a single family and its servants and occasional guests, plus a garage, fencing and such other Improvements as are necessary or customarily incident to a single family Residence. No part of the construction on any Unit shall exceed the applicable height limitations of the City. No projections of any type shall be placed or permitted to remain above the roof of any Residence or Improvement within the Development, except one or more chimneys or vent stacks. No basketball backboard or other sports apparatus shall be constructed or maintained in the Development without the prior written approval of the Design Review Committee. No patio cover, wiring or air conditioning fixture, water softeners or other devices shall be installed on the exterior of a Residence or be allowed to protrude through the walls or roof of the Residence (with the exception of those items installed during original construction), without the prior written approval of the Design Review Committee.

(b) All utility and storage areas and all laundry rooms, including all areas in which clothing or other laundry is hung to dry, must be completely covered and concealed from view of other areas of the Development.

(c) No fence or wall shall be erected or altered without prior written approval of the Design Review Committee. All alterations or modifications of existing fences or walls of any type shall require the prior written approval of the Design Review Committee.

2.15 Landscaping. Within one hundred eighty (180) days after the later to occur of (i) close of escrow for the sale of a Unit in the Development to an Owner (other than a Builder), or (ii) issuance of a Certificate of Occupancy for a Residence constructed on such Unit, the Owner thereof shall install and thereafter maintain (except for that landscaping to be maintained by the Master Association pursuant to the Master Declaration) the landscaping on those portions of the front and side yards of his Unit which are subject to view from the abutting public street or streets, in a neat and attractive condition, including all necessary landscaping and gardening, and properly maintain and periodically replace when necessary the trees, plants, grass and other vegetation, if any, originally placed on such Unit by Declarant or any Builder. No plants or seeds infected with insects or plant diseases shall be brought upon, grown or maintained within the Development. In addition, each Owner shall keep free from weeds, debris and other unsightly objects all portions of the yard on his Unit which are not subject to view from the abutting

public street or streets. As provided in the Bylaws, the Board of Directors shall adopt Rules and Regulations proposed by the Design Review Committee to regulate landscaping. If any Owner fails to install and maintain landscaping in conformance with such rules and regulations, or allows his landscaping to deteriorate to an unsightly or unattractive condition, the Design Review Committee, upon thirty (30) days prior written notice to such Owner, shall have the right to seek any remedies at law or in equity which it may have or to correct such condition or, after notice and a hearing, to enter upon such Owner's property for the purpose of doing so. Such rights shall be immediate, and shall require no notice, in the event that any Owner allows his landscaping to deteriorate to a dangerous or unsafe condition. Such Owner shall promptly reimburse the Master Association for the cost of such correction. Such cost shall be a Specific Assessment enforceable in the manner set forth in the Master Declaration.

2.16 Parking and Vehicular Restrictions. No Owner shall park, store or keep on any street (public or private) within the Development any large commercial type vehicle (including, but not limited to, any dump truck, cement-mixer truck, oil or gas truck or delivery truck); any recreational vehicle (including, but not limited to, any camper unit, house/car or motor home); any bus, trailer, trailer coach, camp trailer, boat, aircraft or mobile home; or any inoperable vehicle or other similar vehicle. The above excludes camper trucks and similar vehicles up to and including three-quarter (3/4) tons and vans which are used for everyday-type transportation. The acceptability of such vehicles, however, is subject to approval by the Board of Directors. The foregoing shall not preclude the parking of recreational vehicles in the R.V. Storage Area, if any, in accordance with the provisions of the Master Declaration. In addition, no Owner shall park, store, or keep anywhere within the Development any vehicle or vehicular equipment, mobile or otherwise, for a period of time to exceed forty-eight (48) hours, or for any time, or in any manner) deemed to be a nuisance by the Board of Directors. All trailers, campers, motor homes and similar recreational vehicles shall be parked only in the R.V. Storage Area, if any, designated by the Board of Directors. Garages shall be kept closed at all times, except as reasonably required for ingress to and egress therefrom. No Owner of a Unit shall conduct repairs or restorations of any motor vehicle, boat, trailer, aircraft or other vehicle upon any portion of any Unit or elsewhere within the Development, except wholly within the Owner's garage; provided, however, that such activity shall at no time be permitted if it is determined by the Board of Directors to be a nuisance. Vehicles owned, operated or within the control of an Owner or of a resident of such Owner's Unit shall be placed in the garage of such Owner to the extent of the space available therein, provided that each Owner shall maintain his garage in a manner which ensures that it is capable of accommodating as many vehicles as it was designed to accommodate. Notwithstanding the foregoing, these restrictions shall not be interpreted in such a manner so as to permit any activity which would be contrary to any applicable City ordinance. The Master Association, through its officers, committees and agents is hereby empowered to establish Rules and Regulations regulating Vehicle parking including designating "parking" and "no parking" areas within the Development, as well as to enforce such parking limitations by all means lawful for such enforcement on public streets, including the removal of any violating Vehicle by those so empowered.

2.17 Further Subdivision. Except as provided in the Master Declaration, no Unit, Common Area or the Association Property in the Development may be further subdivided (including division into time-share estates or time-share uses) without the prior written approval of the Board of Directors, provided, however, that nothing in this Section shall be deemed to prevent an Owner from, or require the approval of the Board of Directors for: (a) transferring or selling any Unit to more than one (1) Person to be held by them as tenants in common, joint tenants, tenants by the entirety or as community property, or (b) the leasing or renting by any Owner of all of his Unit by means of a written lease or rental agreement subject to the Restrictions contained in the Master Declaration.

2.18 Animals. No animals, fowl, reptiles, poultry, fish or insects of any kind ("Animals") shall be raised, bred or kept within the Development except that dogs, cats or other household pets may be kept, provided that they are not bred or maintained for any commercial purpose, or in numbers deemed unreasonable by the Board of Directors. As used in this Supplemental Declaration, "unreasonable quantities" shall ordinarily but not necessarily mean more than two (2) pets per household. Notwithstanding the foregoing, no Animals may be kept on the Units which, in the good faith judgment of

the Board of Directors or a committee selected by the Board of Directors for this purpose, result in an annoyance or are designated obnoxious to residents in the vicinity. All Animals permitted to be kept pursuant to this Section shall be kept under control on a leash when on any portion of the Development except within a Unit, at which time all Animals must be kept within an enclosure, or an enclosed yard. To the extent permitted by law, any Owner of an Animal shall be absolutely liable to all others for any unreasonable noise or damage to Person or property caused by any Animal within the Owner's responsibility. It shall be the absolute duty and responsibility of each Owner to clean up after such Animals which have used any portion of the Association Property or Common Area.

ARTICLE 3. GENERAL PROVISIONS.

3.1 Part of Master Declaration. All provisions of the Master Declaration apply in full to this Supplemental Declaration as if this Supplemental Declaration were a part of the Master Declaration. Enforcement of the covenants, conditions, restrictions, easements, reservations, rights-of-way, liens, charges, and other provisions contained in this Supplemental Declaration shall be in accordance with the terms and provisions of the Master Declaration.

3.2 Conflicts of Provisions. In the case of any conflict between this Supplemental Declaration and the Master Declaration, the Master Declaration shall control.

3.3 Capitalized Terms. Unless defined herein, all capitalized terms shall have the same meaning as defined in the Master Declaration.

IN WITNESS WHEREOF, Declarant has hereunto caused its name to be signed by the signature of its duly authorized official as of the day and year first above written.

DECLARANT:

THE HOWARD HUGHES CORPORATION, a Delaware corporation

By: _____

Name: Kevin T. Orrock

Title: Vice President

STATE OF NEVADA)
) ss.
COUNTY OF CLARK)

This instrument was acknowledged before me on December 13, 2007, by Kevin T. Orrock as Vice President of THE HOWARD HUGHES CORPORATION.

Stella Clark
Notary Public

STELLA CLARK
NOTARY PUBLIC
STATE OF NEVADA
Date Appointment Exp: 03-07-2010
Certificate No: 06-107847-1

CONSENT TO SUPPLEMENTAL DECLARATION

PN II, INC., a Nevada corporation, dba PULTE HOMES OF NEVADA, as the fee owner of the Development described in the foregoing Supplemental Declaration of Annexation and of Covenants, Conditions, Restrictions and Reservation of Easements ("Supplemental Declaration"), hereby consents to the recordation of the Supplemental Declaration.

Acknowledged and Agreed to this 13TH day of December, 2007.

PN II, INC., a Nevada corporation
dba PULTE HOMES OF NEVADA

By: [signature]

Name: Don Boettcher

Title: VP

STATE OF NEVADA)
) ss.
COUNTY OF CLARK)

This instrument was acknowledged before me on December 13TH, 2007, by Don Boettcher as Vice President of PN II, INC., a Nevada corporation, dba PULTE HOMES OF NEVADA.

Annette M. Watkins
Notary Public

ANNETTE M. WATKINS
Notary Public, State of Nevada
Appointment No. 03-80701-1
My Appt. Expires Mar 19, 2011

ATTACHMENT "A"

THE DEVELOPMENT

THAT PORTION OF SECTIONS 13 AND 14, TOWNSHIP 20, RANGE 59 EAST, M.D.B. & M., DESCRIBED AS FOLLOWS

PARCEL 1 OF THAT CERTAIN PARCEL MAP RECORDED IN BOOK 112 OF PARCEL MAPS, PAGE 94, OF THAT OFFICIAL RECORDS OF THE CLARK COUNTY RECORDER, CLARK COUNTY, NEVADA.